

23CMCV01184 23CMCV01184

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-21

Motion: DEFENDANT'S MOTION TO COMPEL INITIAL RESPONSES

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Case Number: 23CMCV01184 Hearing Date: August 21, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

JOSEPH FOSTER,

Plaintiff,

vs.

PRUDENTIAL

OVERALL SUPPLY, et al.,

Defendants.

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CASE NO: 23CMCV01184

[TENTATIVE]

ORDER RE: DEFENDANT'S MOTION TO COMPEL INITIAL RESPONSES

Dept.

A

DATE:

August 21, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 7/31/2023

TRIAL:

3/20/2028

MOVING PARTIES: Defendants

Prudential Overall Supply and Bryan Lara

RESPONDING PARTY: Plaintiff

Joseph Foster

1.

Background

On July 1, 2022, Plaintiff Joseph Foster was involved in an automobile collision with a vehicle operated by Defendant Bryan Lara driving on behalf of Prudential Overall Supply. On July 21, 2023, Plaintiff, while represented by counsel filed a complaint for Motor Vehicle and Negligence.

On July 15, 2024, Plaintiff substituted into the action in pro per. On November 18, 2025, Defendants answered the complaint.

2.

Discussion

A. Standard

Defendants

Prudential Overall Supply and Bryan Lara move to compel initial responses to Form Interrogatories (set one), Special interrogatories (set one), and Request for Production of Documents (set one). Plaintiff does not oppose the motion.

A party may move to compel responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents (set one) upon the lapse of the 30-day deadline following service of the discovery. (Code Civ. Proc., §§ 2030.290, subd. (a-b); 2031.300, subd. (a-b).)

B. Self-Represented Party

“Although self-represented litigants are not entitled to special treatment, they are entitled to the same treatment as a represented party.

... 'Trial judges must acknowledge that in propria persona litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' (Citation). When one party has counsel and the other does not, the trial court 'should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court...

[S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson.'" (Petrosyan v. Prince Corp. (2013) 223 Cal.App.4th 587, 594.)

C.

Outstanding Discovery

On April 2, 2026, Defendants served Form Interrogatories (set one), Special interrogatories (set one), and Request for Production of Documents (set one). The responses remain outstanding, even after communication with Plaintiff. [Declaration of Virginia Lopez, ¶¶ 2, 4-7, Ex. A-D.]

3. Conclusion

The motion to compel initial responses to Form Interrogatories (set one), Special interrogatories (set one), and Request for Production of Documents (set one) is GRANTED. Plaintiff to serve verified, code compliant responses within 15 days of this order.

The court imposes \$320 in sanctions against Plaintiff in pro per. [Lopez Decl., ¶¶ 8-9], payable to Defendant within thirty (30) days. (Code Civ. Proc., §§ 2030.290, subd. (c); 2031.300, subd. (c).)

Defendants are ordered to give notice.

DATED: August 21, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court